

it may take such steps as may be necessary to avert such danger or remove such obstruction and submit a report thereof to the Central Government in such manner and within such time as may be prescribed.

(2) Where in the opinion of a railway administration -

(a) a slip or accident has occurred; or

(b) there is apprehension of any slip or accident to any cutting embankment or other work on a railway,

it may enter upon any lands adjoining the railway and do all such works as may be necessary for the purpose of repairing or preventing such slip or accident and submit a report thereof to the Central Government in such manner and within such time as may be prescribed.

(3) The Central Government may, after considering the report under sub-section (1) or sub-section (2), in the interest of public safety, by order, direct the railway administration that further action under sub-section (1) or Sub-section(2) shall be stopped or the same shall be subject to such condition as may be specified in that order.

15. Payment of amount for damage or loss - (1) No suit shall lie against a railway administration to recover any amount for any damage or loss caused in the exercise of the powers conferred by any of the foreign provisions of this chapter.

(2) A railway administration shall pay or tender payment for any damage or loss caused in the exercise of the powers conferred by any of the foregoing provisions of this chapter, and in case of a dispute as to the sufficiency of any amount so paid or tender or as to the persons entitled to receive the amount, it shall immediately refer the dispute for the decision of the District judge of the district and his decision thereon shall be final;

Provide that where the railway administration fails to make a reference within sixty days from the date of commencement of the dispute, the District Judge may, on an application made to him by the person concerned, direct the railway administration to refer the dispute for his decision.

(3) The reference under sub-section (2) shall be treated as an appeal under Sec.96 of the Code of Civil Procedure, 1908 (5 of 1908), and shall be disposed of accordingly.

(4) Where any amount has been paid as required by sub-section (2), the railway administration shall, notwithstanding anything in any other law for the

time being in force, he discharged from all liabilities to any person whatsoever in respect of any amount so paid.

Comments

Section 15, sub-clause (1) provides that no suit shall lie against the railway administration to recover any amount for any damage or loss caused in exercise of the powers conferred by any of the foregoing provisions of this Chapter.

Sub-clause (2) provides that the amount of damage or loss shall be paid or tendered to the persons and if any dispute arises as to the sufficiency of the amount or as to the persons entitled to receive such amount, the same shall be referred to the District Judge who shall decide it as an appeal under Sec. 96 of the Code of Civil Procedure, 1908.

16. Accommodation Works – (1) A railway administration shall make and maintain the following works for the accommodation of the owners and occupiers of lands adjoining the railway, namely :

- (a) such crossings, bridges, culverts and passages over, under or by the sides of, or leading to or from, the railway as may, in the opinion of the State Government, be necessary for the purpose of making good any interruptions caused by the railway to the use of the lands through which the railway is made ; and
- (b) all necessary bridges, tunnels, culverts, drains, water sources or other passages, over, under or by the sides of the railway, of such dimensions as will, in the opinion of the state government, be sufficient at all times to convey water as freely from or to the lands lying near or affected by the railway as it was before the making of the railway or as nearly as possible.

(2) Subject to the other provisions of this Act, the works specified in sub-section(1) shall be made at the cost of the railway administration during or immediately after the laying out or formation of the railway over the lands traversed and in such a manner as to cause as little damage or inconvenience as possible to persons interested in the lands or affected by the works :

Provided that –

- (a) a railway administration shall not be required to make any accommodation works in such a manner as would prevent or obstruct the working or using of the railway, or to make any accommodation works with respect to which the owners or occupiers of the lands have been paid compensation in